



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 8409 (EXTENSION)
ORIGINAL September 30, 1980

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8409 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 15, 1992. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.

for

Alan I. Roberts

Director
Office of Hazardous Materials
Transportation

JAN 31 1990

(DATE)

Dist: FHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

EM Science
Cincinnati, OH

November 20, 1989



DEPARTMENT OF TRANSPORTATION
RESEARCH AND SPECIAL PROGRAMS ADMINISTRATION
WASHINGTON, D.C. 20590
DOT-E 8409

1. MCB Manufacturing Chemists Inc., Cincinnati, Ohio, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a certain corrosive liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of hydrofluoric acid no greater than 70% strength, in non-DOT specification polyethylene bottles, not exceeding a capacity of 6 liters, packed in DOT Specification 12A fiberboard boxes and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on MCB Manufacturing Chemists Inc.'s application dated April 10, 1980, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Hydrofluoric acid solution, not over 70% strength, classed as a corrosive material.
4. PROPER SHIPPING NAME (49 CFR 172.101). Hydrofluoric acid solution.
5. REGULATION AFFECTED. 49 CFR 173.264(a)(4), 178.210.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.
7. SAFETY CONTROL MEASURES. Packaging prescribed is DOT Specification 12A corrugated fiberboard box, with inside packagings consisting of high density polyethylene bottles, not exceeding a capacity of six (6) liters each and having a minimum wall thickness of 0.079 inches. Each bottle shall contain no more than five liters (5.3 quarts). The polyethylene bottle must meet all the performance tests prescribed for the DOT-2E bottle (§178.24a). Design of bottles, closure, and means of further securing closure, must be as described and shown in petitioner's application. No more than four inside bottles shall be packed in one outside box and the gross weight of the completed package shall not exceed 80 pounds. Box, closed as for shipment, with inside bottles filled with water, must be capable of satisfactorily withstanding the performance testing prescribed in 49 CFR 178.210-10.
8. SPECIAL PROVISIONS.
 - a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
 - b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.
10. EXPIRATION DATE. September 15, 1982.

Continuation of DOT-E 8409

Page 2

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

SEP 30 1980
(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions
Branch.

Dist: USCG, FHWA